

# HOUSE . . . . . No. 4295

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, July 21, 2025.

The committee on Revenue, to whom was referred the petition (accompanied by bill, House, No. 3256) of Mark D. Sylvia for legislation relative to the separation of agricultural land for renewable energy purposes, reports recommending that the accompanying bill (House, No. 4295) ought to pass [Representatives Lombardo of Billerica and Boldyga of Southwick dissent].

For the committee,

ADRIAN C. MADARO.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act relative to the separation of agricultural land for renewable energy purposes.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 17 of chapter 61A of the General Laws, as appearing in the 2022 Official Edition,  
2 is hereby amended by inserting, after the first sentence, the following: -

3           Notwithstanding the provisions in this section, if, by conveyance or other action of the  
4 owner thereof, a portion of land previously used primarily and directly for agricultural purposes  
5 pursuant to section 1 or land used primarily and directly for horticultural use pursuant to section  
6 2, which is valued, assessed and taxed under the provisions of this chapter is separated to serve  
7 as the site of a renewable energy generating source, as defined in subsection (b) of section 11F of  
8 chapter 25A of the General Laws, the land so separated shall not be subject to liability for  
9 conveyance for such time as the separated land is in use for the purpose of producing a  
10 renewable energy generating source. Such land shall instead be subject to the payment of fifty  
11 percent of the applicable roll-back taxes to be due payable at the time it commences serving as  
12 the site of a renewable energy generating source; provided that such land is non-productive  
13 agricultural or horticultural land at the time of the proposed separation. Should the use of  
14 separated land as a renewable energy generating source permanently cease, and the land is not

15 placed back into agricultural use or horticultural use, then the land shall be subject to liability for  
16 conveyance applicable thereto at the time its use as a renewable energy generating source  
17 permanently ceases. Any portion of land separated subject to this provision shall not exceed ten  
18 percent of the total amount of contiguous land; provided that such separated land shall not  
19 exceed fifteen acres of the land which is valued, assessed and taxed under the provisions of this  
20 chapter at the time such land is separated to serve as the site of a renewable energy generating  
21 source.